



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAY 7 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 3415
(EIGHTH REVISION)

EXPIRATION DATE: April 30, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109.)

1. **GRANTEE:** Department of Defense, Washington, DC.
2. **PURPOSE AND LIMITATION:** This exemption authorizes the transportation in commerce of rocket motors (Divisions 1.1C, 1.2C or 1.3C) without overpacking, and provides no relief from any regulation other than as specifically stated.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR Section 173.62.
5. **BASIS.** This exemption is based on the Department of Defense's application dated March 31, 1998 in accordance with 107.109.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description/proper shipping name	Hazard Class/ (Division)	Identification number	Packing Group
Poseidon, Polaris and Trident C-4; Rocket motors	1.1C, 1.2C, or 1.3C, as appropriate	UN 0280, UN 0281, or UN 0186 as appropriate	II

7. **SAFETY CONTROL MEASURES:**
 - a. **PACKAGING** - Rocket motors, without overpacking, must be mounted on cradle-type skids and tied down on flat-bed highway vehicles in the manner detailed on drawings on file with, and acknowledged in writing by, the Office of Hazardous Materials Safety or as referenced on drawings 83313J00274, 83314J00374 and 83283S00881. Motors must be covered with a water and fire resistant tarpaulin properly secured to the vehicle at all times during transportation.
 - b. **TESTING** - None required as a part of this exemption.

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- c. MARKING - As required by 49 CFR Part 172, Subpart D.
8. SPECIAL PROVISIONS. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

Alan I. Roberts
for Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

5/7/98
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA